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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

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No. 2446/39 - TUESDAY, JULY 22, 2025

(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No. සාම/වතු/7/2023

THE INDUSTRIAL DISPUTES ACT - CHAPTER 131

THE Collective Agreement entered into between **Sri Lanka State Plantations Corporation - No. 257, Sridhamma Mawatha, Colombo 10** of the one part and the **Ceylon Estate Staffs' Union - No. 06, Aloe Avenue, Colombo 03** of the other part on 10th February 2023 is hereby published in terms of Section 06 of the Industrial Disputes Act, Chapter 131, of the Legislative Enactments of Ceylon (Revised Edition 1956).

H.M.D.N.K. WATALIYADDA,
Commissioner General of Labour.

Department of Labour,
Labour Secretariat,
Colombo 05.
26th June, 2025

Collective Agreement No. 37(2) of 2023



COLLECTIVE AGREEMENT - TECHNICAL STAFF

This Collective Agreement made and entered into between the Sri Lanka State Plantations Corporation No. 257, Sridhamma Mawatha, Colombo 10 of the First Part, and the Ceylon Estate Staffs' Union of No. 6, Aloe Avenue, Colombo 3, of the Second Part, on this 10th day of February, Two Thousand and Twenty- Three witnessed as follows,

1. ***Title.-***

This Agreement shall be known as the Plantations Technical Staff Collective Agreement.

2. ***Employers Covered and Bound.-***

This Agreement shall bind the management of the Sri Lanka State Plantations Corporation, whose name is mentioned as first part for and in respect of the categories of employees hereinafter described in Clause 3, hereof.

3. ***Union and Employees Covered and Bound.-***

This Agreement shall cover and bind the aforesaid Trade Union, hereinafter referred to as the Union, and members of the said Union who are employed by Sri Lanka State Plantations Corporation on monthly contracts of employment and in respect of whom salary ranges are prescribed in Schedule 1, hereon.

4. ***Earlier Agreements. -***

The provisions of this Agreement shall supersede and replace any earlier Agreements in respect of these categories and shall be deemed conclusive in relation to all terms and conditions. In the event of there being any dispute with regard to the existence of any other term or condition not contained herein, the same shall be resolved by reference to the 'Disputes Committee' and thereafter to the Commissioner General of Labour in terms of the Industrial Disputes Act if the matter is not resolved before the 'Disputes Committee', but the party of the Second Part shall not be entitled to take trade union action on the basis of the existence of any such alleged term or condition.

5. ***Date of Operation and Duration.-***

Subject to any provisions to the contrary, this Agreement shall be effective from 01st October 2022 and shall thereafter continue in force unless terminated by either party giving notice of termination in terms of the Industrial Disputes Act, subject to the condition that no party shall give notice to the other before 30th September 2025.

6. ***General Terms and Conditions.-***

- i. The revised terms and conditions relating to this Agreement shall only come into force on the 01st October 2022 and shall be deemed to be included in all contracts of employment of those covered by this Agreement with effect from the said date.
- ii. Grading of employees covered shall be at the discretion of the Employer.
- iii. Upon completion of 10 years' of service under the same employer, Factory Officers should be re-designated as 'Special Grade Factory Officers' with a minimum of one (1) increment.
- iv. Upon completion of 10 years of service under the same employer, Junior Assistant Factory Officer shall be re-designated as Assistant Factory Officer with a minimum of one (1) increment.
- v. Any employee enjoying better terms and conditions than what is stipulated in this Agreement shall continue to enjoy the same.

7. First Appointment.–

- i. No person will be recruited to a grade covered by this Agreement unless he/she has successfully completed the G.C.E. (Ordinary Level) Examination with English and Mathematics. This will not apply to those who have experience in the trade.
- ii. All designations of new recruits should be as specified under Schedule 1 hereof.

8. Probation.–

On recruitment every employee shall serve a period of probation of not more than six months, subject to the right of the Employer to extend the probationary period for a further period of three months at his discretion for reasons of unsatisfactory performance, misconduct or other justifiable cause. Confirmation shall be by letter. However, in the event of the probationary period not being extended after the period of 6 months, the employee shall be deemed to be confirmed notwithstanding there being no letter of confirmation. During the period of probation or extended. Probation the Employer shall have the right to terminate his/her services without notice or assigning reasons thereof.

9. Attendance at Work.–

Unless otherwise specifically instructed by the Employer, an employee shall present himself for work on every day other than a holiday due to him, at the usual starting time and at the usual working place and shall thereafter remain available for work throughout the normal working hours.

10. Promotions.–

- i. Wherever vacancies exist, all other factors being comparable, seniority shall be given preference. The Employers shall advertise internally vacancies where employees covered by this Agreement may have appropriate skills and qualifications to make them eligible.
- ii. Where an employee acts in a senior capacity over a period of 6 months and if he is confirmed in the senior capacity, he will not be required to serve a period of probation.
- iii. Where an employee is required to act in a senior capacity for a period of more than one month, it should be communicated to him in writing and he shall be paid an Acting Allowance of Rupees Two Thousand Five Hundred (Rs. 2500/-) per mensem. When confirmed, this acting allowance shall be added to the salary.
- iv. When promoting an employee to a senior position, a salary Increase of minimum one (1) increment shall be granted.
- v. If an employee obtains a work-related course certificate from National Institute of Plantation Management (other than the courses initiated by the Corporation), as approved by the management, such employee shall be granted special increments with reimbursement of course fee and to be considered for a higher position.
- vi. Overlooking periods shall not exceed 6 months and during that period the employer shall pay the employee 10% of the employees' basic salary as an overlooking allowance. This functional allowance shall not attract any consequential benefits such as EPF and ETF.

11. Salaries.–

1. The salaries payable to the employee covered and bound by this Agreement shall be revised as follows:
 - i. With effect from 01st October 2022, the salaries of all employees who are in employment shall be increased by 25% based on the salary drawn in September 2022.

- ii. With effect from 01st October 2024, the salaries of all employees who are in employment, shall be increased by 5% based on the last drawn salary.
 - iii. Subject to the provisions set out in clause 6 (i) above, the Sri Lanka State Plantations Corporation covered and bound shall pay the revised salaries from the month of October 2022.
 - iv. Employees who reach the maximum salary point depicted in the scale will continue to receive annual increments if they continue to remain within the same category.
 - v. In the case of Storekeepers/Technical staff who are entitled to an allowance on account of work as a Storekeeper, such employee shall continue to receive his/her allowances at the rate of 15% of the salary drawn by him/her. The allowances shall not be payable if the additional duties are not performed or not deemed necessary. Contributions to EPF and ETF shall be made in respect of this allowance.
 - vi. In terms of the above salary revision, the salary ranges applicable will accordingly be revised as per schedule 1 of this Agreement.
2. i. With effect from the date hereof, employees who are entitled to a payment in lieu of staff quarters being provided to them shall receive a 10% increment of the following allowances, which will be rounded off to the nearest Rs50/-, depending on the grade to which they belong, and the revised allowance will be as follows:

Junior Asst. Factory Officer	-	Rs. 1,350/= + 10% = Rs. 1,500/=
Asst. Factory Officer	-	Rs. 1,450/= + 10% = Rs. 1,600/=
Senior Asst. Factory Officer	-	Rs. 1,700/= + 10% = Rs. 1,900/=
Factory Officer	-	Rs. 1,850/= + 10% = Rs.2,050/=
Factory Officer Special Gr.	-	Rs. 1,900/= + 10% = Rs.2,100/=

- ii. In the event of any person not occupying quarters provided by the Employer, such person shall be liable to disciplinary action.

12. **Annual Increments.-**

- i. Annual increments shall be granted automatically on completion of an year's service. The increments will be awarded in accordance with the practice prevailing on each estate, Where increments are awarded on a uniform date to all employees, in the event of an employee being confirmed in service within six months of the date on which increments are awarded, he shall not be entitled to any increment and will become eligible only from the following year.
- ii. An increment may be suspended, stopped or deferred by way of punishment or for general inefficiency, after the employee has been notified in writing of such fact. In the case of deferment, the loss of increment shall be continuous, whereas stoppage would be only for the period relevant to the stoppage.
- iii. Revised annual increments shall be paid to all employees in employment as on 01st October 2022.

Junior Asst. Factory Officer	Rs. 775/=
Asst. Factory Officer	Rs. 925/=
Senior Asst. Factory Officer	Rs. 1125/=
Factory Officer	Rs. 1675/=
Factory Officer Special Gr.	Rs. 2125/=

13. **Hours of Work and Overtime.-**

- i. The working week shall be six days of forty eight hours. One day each week shall be allowed as an off day. Work on the weekly off day or in excess of forty eight hours per week or nine hours per day shall be deemed to be overtime.

- ii. If required by his Employer, an Employee shall work reasonable overtime which has been authorized by the Employer. Each hour of overtime work shall be calculated as per the relevant statutory rate.

14. **Weekly and Poya Holidays.**—

The working week shall be six days or 48 hours. One day each week shall be allowed as 'off-day'. Work on the weekly off-day, statutory holiday shall be calculated by dividing the monthly salary by two hundred and forty (240) and multiplied by one-and-half (1 1/2) times.

15. **Holidays.**—

- i. All employees covered by this Agreement will be entitled to the following holidays:

Tamil Thai Pongal Day
National Day
Day Prior to Sinhala and Tamil New Year
Sinhala and Tamil New Year Day
May Day
Day following Vesak Full Moon Poya Day
Holy Prophet's Birthday (Milad-Un-Nabi)
Christmas Day

- ii. Payment for work on such holidays shall be remunerated guided by the decisions of the relevant wages boards.

16. **Leave.**—

1. **Annual Leave** - Employees shall be entitled to a maximum of 14 days Annual Leave. In the first year the leave entitlement shall be on a proportionate basis. All employees with more than 20 years service and Heads of Departments shall be entitled to three weeks paid annual leave as a special benefit: this right shall not extend to any employee recruited after 1st September 1993.
2. **Casual Leave** - All employees shall be entitled in each year to a maximum of seven (7) days Casual Leave with full pay, not more than three (3) days being taken at a time. Casual leave not utilized in any one year will not be carried over to the next year.
3. (i) **Sick Leave** - Leave on full pay shall be granted up to a maximum of 21 working days in a year. Sick leave will be granted up to two days at a time without the submission of a Medical Certificate. For leave of three days and over, a medical certificate from an approved Medical Practitioner or a Government Hospital shall be considered necessary, subject to the right of the Employer to call for a medical certificate as aforementioned, where he deems it appropriate.
(ii) In the event of an employee not availing himself of his full quota of sick leave, he may carry forward his leave, which he could use in the event of hospitalization or a prolonged illness in a succeeding year, subject to the condition however that he cannot avail himself of more than 90 days on that account.
(iii) In the case of an employee whose terms presently permit him a higher quantum of sick leave he/she shall be permitted to continue to enjoy such concession as personal to him/her.
4. **Maternity Leave** - Maternity Leave will be granted according to the provisions of the Maternity Benefits Ordinance.

17. **Administrative Transfers.**—

- i. Transfers not involving hardship in relation to schooling of children or employment of a spouse, will, subject to the exigencies of the service and the requirements of the Employer, be made at the discretion of the Management with one month's notice in writing.

- ii. Transfers from one estate to another or from one division to another which are likely to cause hardship on account of children's schooling or the spouse's employment shall generally be made at the end of the year with three (3) calendar months' notice in writing on or before 30th September.
- iii. Employees whose children are sitting for the GCE OL/AL examination for the first time will not be transferred in that particular year.
- iv. The transfers of employees whose children are to be admitted to Grade 1 in School also will be considered.
- v. No employee shall be transferred from one company to another managed by the same management company, without the consent of the employee.
- vi. Transfers from one plantation district to another, which are likely to cause hardship on account of children's schooling, or spouse's employment will be considered.
- vii. Employees whose children are sitting for year 5 scholarship exam will also be considered.
- viii. No employee covered by this Agreement shall be transferred, except on disciplinary grounds, in the last year prior to his retirement.
- ix. The provisions of sub-clauses (i), (ii), (iii), (iv), (v), (vi), and (vii) above shall not apply to transfers on disciplinary grounds, but the Management shall give reasonable notice, depending on the circumstances of each case.

18. **Age of Retirement.**-

Unless the Letter of Appointment specifies a higher retiral age, the age of retirement shall be 60 years and will be applicable to those who are in employment as at the date of signing this Agreement.

19. **Gratuity.**-

Gratuity shall be payable in accordance with the Payment of Gratuity Act, No. 12 of 1983.

20. **Disciplinary Inquiries.**-

- i. An employee may be suspended without pay by his Employer pending an inquiry on a charge which warrants dismissal or where, in the opinion of the Employer, a breach of the peace, damage to property or disturbance of business needs to be avoided. Where an employee is suspended without pay he shall be notified in a general manner of the reasons for such suspension within 3 days of the actual suspension.
- ii. An employee may also be suspended with pay pending a disciplinary investigation and inquiry, where the Management deems that such measure is necessary.
- iii. An employee is entitled to be furnished with a 'show cause' notice setting out the charges of misconduct alleged against him and the employee shall be granted not less than seven (7) clear working days in which to give the answer or explanation. Where necessary the employee may request further time and the Employer shall permit a reasonable amount of time depending on the nature of the charges, but not exceeding a total of 14 working days, other than in exceptional circumstances.
- iv. If the Employer is satisfied with the written explanation, the employee shall be exonerated of the charge or charges and where appropriate he shall be summoned to report back for work. Where the explanation is unsatisfactory, the Employer shall hold a disciplinary inquiry within a reasonable length of time and shall commence such inquiry within 30 working days from the date on which the explanation to the 'show cause' letter is received, unless circumstances prevent the employer from doing so.

- v. An employee shall be permitted to have a Union member to defend him at the Inquiry. Such representative shall not be a professional. If the employee wishes to have the benefit of such representation he shall inform the Superintendent of the name of the person defending him at least 48 hours before the Inquiry is due to commence. The Superintendent may object to the individual selected, in which event the accused employee may nominate another representative. The failure of an employee to be defended by a representative shall not vitiate the inquiry.
- vi. The Employer shall endeavor to give the findings and convey the punishment, if any, within a period of 30 working days from the date on which the inquiry is concluded, unless there is justification for the delay. In no case shall the findings be delayed beyond 90 working days from the date of conclusion of the inquiry, save and except in the case of a pending criminal investigation. If no findings are given within 90 working days and the above exception does not apply, the accused employee shall be exonerated of the charges.
- vii. Notwithstanding the above provisions, an Employer may, where the circumstances so warrant, terminate an employee summarily. In such event the letter of termination shall set out the reasons for termination, including the justification for summary termination. In such event, the Union may appeal to the Employer or to the appropriate forum.

21. ***Suspension Pending Disciplinary Inquiries.-***

- i. An employee may be suspended from work without pay for a period not exceeding one month pending a disciplinary inquiry when there is *prima facie* evidence, in the opinion of the Employer, of a charge or charges of misconduct against him. Such suspension shall be in writing.
- ii. Suspension of an employee on the ground referred to in sub-clause (1) above for any period in excess of one month shall be on half pay.
- iii. The provisions contained in sub-clauses (I) and (2) above shall not apply to the suspension of an employee pending inquiries by the Police, by other Public Authorities or Audit Verifications.

22. ***Suspension as a Measure of Punishment.-***

- i. Punishment for offences in the case of an employee may include suspension, provided however that such suspension shall not exceed fourteen days without pay and shall be in writing.
- ii. Punishment in excess of three days suspension without pay shall only be after a domestic inquiry.

23. ***Variations of Terms and Conditions of employment and disputes.-***

- i. Parties hereto agree that during the continuance in force of this Agreement, they will not seek to vary, alter or add to any of the terms and conditions of employment, except by mutual consent.
- ii. Any employee enjoying a benefit, which is over and above the normal entitlement, shall continue to enjoy the same as personal, but this benefit shall not extend to any other employee. The above provision shall not apply to the consumption of electricity, where a limit shall be fixed for all employees.
- iii. Any dispute or issue of interpretation of this Agreement shall be resolved by reference to the Commissioner General of Labour under the Industrial Disputes Act, and if no settlement could be reached, by voluntary arbitration thereafter.
- iv. It is agreed by and between parties that the Unions, collectively or independently, or their members, shall not resort to any form of trade union action on any matter covered by this Agreement or is connected therewith.

24. Disputes Resolution Committee.-

It is agreed by parties that a disputes resolution committee' shall meet once in three months to resolve any dispute that may arise in relation to any violation of the provisions of this agreement, if required. However, in case of an urgent necessity a meeting will be held with two weeks' notice if requested by either party. Decisions arrived at the Disputes Resolution Committee shall be implemented within a period agreed between the parties.

25. Duty Leave.-

- (i) Subject to the approval of their respective Employers, the President and one other office bearer of the Parent Union will be permitted such duty leave as their Union duties require.
- (ii) Where any dispute arises with regard to duty leave of the President and the nominated office bearer of the Parent Union, as specified in sub clause (I) above, the both parties will attempt to effect an amicable settlement.
- (iii) By mutual arrangement with the Employer, the Treasurer of the Parent Union shall be allowed twelve days duty leave in any one year.
- (iv) By arrangement with their respective Employers, two Vice Presidents of the Union shall be allowed twelve days duty leave each in any one year.
- (v) By arrangement with their respective Employers, Branch Chairman and Executive Committee Member of the Union shall be allowed twelve days duty leave which may be shared with the respective Branch Secretaries, on condition that the total leave availed jointly by these two Office bearers shall not exceed twelve days in any one year.
- (vi) Duty leave shall be granted to one employee selected from amongst all staff categories per estate selected by the union to attend seminars and workshops conducted by the union or any other labour related institute on not more than two occasion in a year for a period not exceeding four (4) days. The Union shall inform the Employers in writing the requirement of duty leave required in terms of this clause.

PART II

01. The Sri Lanka State Plantations Corporation covered and bound by this agreement undertake to discuss with the Union to resolve any issues relevant to employees in a situation of amalgamation/sub-leasing of estates/divisions/factories prior to such situations. However, the Sri Lanka State Plantations Corporation will continue to be the employer of such employees.

02. Electricity.-

Free electricity would be granted to members of staff on the following basis, irrespective of what they had been enjoying in the past.

Elevation below 4,500 feet (Factory Elevation)

Senior staff	- 140 units
Junior staff	- 100 units

Elevation above 4,500 feet (Factory Elevation)

Senior staff	- 170 units
Junior staff	- 130 units

Recoveries for any excess usage will be made once in 6 months on the accumulated figure at the rate that costs each estate.

Kerosene - Employer shall provide 25 litres kerosene per mensem to those employees resident on estates / divisions without electricity.

03. **Tea Allowance.-**

The employer shall provide free tea, on the following basis, to members of estate staff (including future recruits in those categories presently entitled) irrespective of what they had been enjoying in the past.

Senior staff - 2 Kgs.
Junior staff - 1 1/2Kgs.

The staff members could purchase in addition to the above free tea, the same quantities at the rate of 75% of the NSA or COP whichever is lower.

Staff members who had been entitled to three or more kilos of tea at a concessionary rate before June 1992 would be entitled to purchase a maximum of 3kgs at a concessionary rate of 35% of COP or NSA whichever is lower with effect from 1st June 2003.

04. **Death Grant.-**

- i. With effect from the date hereof, on the death of a staff member, the dependents will be paid a sum of Rupees Two Hundred Thousand (Rs,200,000/=) as funeral expenses.
- ii. The dependents of the deceased staff member will be paid 50% of the sum equivalent to three months salary within one month upon the death of the employee and the balance at the time the dependents hand over the staff quarters.
- iii. If quarters are not provided to the deceased staff member, the dependents will be paid the sum equivalent to three months salary within one month of the death of the staff member.

05. **Medical Aid Scheme.-**

- i. The Employee contribution to the medical aid scheme will be 5% and the Employers' contribution shall be 10%.
- ii. A staff member who is a member of the staff medical aid scheme will be paid the total balance lying to his/her credit in the fund inclusive of the employer's contribution to such fund, at the time of retirement/death or termination of his/her employment from the estate.

06. **Union Subscription.-**

- i. The Employer agrees, on the written request of an employee, to deduct from the wages due to such employee, the current monthly union subscription as specified by employee, to be payable monthly by the employee to the union and remit the amount so deducted to the union by the following month, till such time the employee maintains his request.
- ii. In the event of the union being representative of less than 40% of the employees, no remittance in respect of check-off would be made thereafter.

07. **Festival Advance.-**

- i. The festival presently stands Rs. 20000/00. Any revision will be on mutual agreements Through negotiations.

INTERPRETATION

<u>Word</u>	<u>Meaning</u>
Union	means the union referred to as the Party of the Second Part in this Agreement.
Dispute	shall have the same meaning as in the Industrial Disputes Act.
Employer/Corporation	mean Sri Lanka State Plantations Corporation
Week	means the period between midnight on any Saturday and midnight on the succeeding Sunday night.
Year	means a continuous period of 12 months.
Gender	a reference to the masculine gender shall include the feminine as well.

In Witness whereof the parties aforesaid have hereunto set their hands at Colombo on this 10th day of February, Two Thousand and Twenty-Three.



Schedule I

Categories of Employees

	Previous Salary	Salary with 25% Increase	Proposed Initial Salary	Annual Increment 2023/2024/2025
Junior Asst. Factory Officer	Rs.30000.00	Rs. 37500.00	Rs.38000.00	Rs. 775.00
Asst. Factory Officer	Rs.31000.00	Rs. 38750.00	Rs.39000.00	Rs. 925.00
Snr. Asst. Factory Officer	Rs.32000.00	Rs. 40000.00	Rs.40000.00	Rs.1125.00
Factory Officer	Rs.33000.00	Rs. 41250.00	Rs.42000.00	Rs.1675.00
Factory Officer Special Grade	Rs.39000.00	Rs. 48750.00	Rs.49000.00	Rs.2125.00
Lab Assistant/ Speciation Officer				

Note: From 01st October 2024 a 5% increase based on September, 2024 salary will be granted.

EOG 07-0287

My No. සාම/වතු/7/2023

THE INDUSTRIAL DISPUTES ACT - CHAPTER 131

THE Collective Agreement entered into between **Sri Lanka State Plantations Corporation - No. 257, Sridhamma Mawatha, Colombo 10** of the one part and **The Ceylon Estate Staffs' Union - No. 06, Aloe Avenue, Colombo 03** of the other part on 10th February 2023 is hereby published in terms of Section 06 of the Industrial Disputes Act, Chapter 131, of the Legislative Enactments of Ceylon (Revised Edition 1956).

H.M.D.N.K. Wataliyadda,
Commissioner General of Labour.

Department of Labour,
Labour Secretariat,
Colombo 05.
26th June, 2025

Collective Agreement No. 37(1) of 2023

COLLECTIVE AGREEMENT - CLERICAL STAFF

This Collective Agreement made and entered into between the Sri Lanka State Plantations Corporation No. 257, Sridhamma Mawatha, Colombo 10 of the First Part, and the Ceylon Estate Staffs' Union of No. 6, Aloe Avenue, Colombo 3. of the Second Part, on this 10th day of February, Two Thousand and Twenty- Three witnessed as follows,

1. **Title.-**

This Agreement shall be known as the Plantations Clerical Staff Collective Agreement.

2. Employers Covered and Bound.-

This Agreement shall bind the management of Sri Lanka State Plantations Corporation, whose name is mentioned as first part for and in respect of the categories of employees hereinafter described in Clause 3, hereof.

3. Union and Employees Covered and Bound.-

This Agreement shall cover and bind the aforesaid Trade Union, hereinafter referred to as the Union, and members of the said Union who are employed by Sri Lanka State Plantations Corporation on monthly contracts of employment and in respect of whom salary ranges are prescribed in Schedule 1, hereon.

4. Earlier Agreements. -

The provisions of this Agreement shall supersede and replace any earlier Agreements in respect of these categories and shall be deemed conclusive in relation to all terms and conditions. In the event of there being any dispute with regard to the existence of any other term or condition not contained herein, the same shall be resolved by reference to the 'Disputes Committee' and thereafter to the Commissioner General of Labour in terms of the Industrial Disputes Act if the matter is not resolved before the 'Disputes Committee', but the party of the Second Part shall not be entitled to take trade union action on the basis of the existence of any such alleged term or condition.

5. Date of Operation and Duration.-

Subject to any provisions to the contrary, this Agreement shall be effective from 01st October 2022, and shall thereafter continue in force unless terminated by either party by giving notice of termination in terms of the Industrial Disputes Act, subject to the condition that no party shall give such notice to the other before 30th September 2025.

6. General Terms and Conditions.-

- i. The revised terms and conditions relating to this Agreement shall only come into force on the 01st October 2022 and shall be deemed to be included in all contracts of employment of those covered by this Agreement with effect from the said date.
- ii. Grading of employees covered shall be at the discretion of the Employer.
- iii. Upon completion of 10 years of service under the same employer, Administrative Officers shall be re-designated as 'Special Grade Administrative Officers' with a minimum of one (1) increment.
- iv. Upon completion of 10 years of service under the same employer, Junior Clerks shall be re-designated as Clerks, with a minimum of one (1) increment.
- v. Any employee enjoying better terms and conditions than what is stipulated in this Agreement shall continue to enjoy the same.

7. First Appointment.-

- i. No person will be recruited to a grade covered by this Agreement unless he has successfully completed the G.C.E (Ordinary Level) Examination with English and Mathematics. This will not apply to those who have experience in the trade.
- ii. All designations of new recruits should be as specified under Shedule 1 hereof.
- iii. Storekeepers are to be placed in a grade that is comparable to those in the clerical grade on salary applicable to clerks.

8. Probation.-

On recruitment every employee shall serve a period of probation of not more than six months, subject to the right of the Employer to extend the probationary period for a further period of three months at his discretion for reasons of unsatisfactory performance, misconduct or other justifiable cause. Confirmation shall be by letter. However, In the event of the probationary period not being extended after the period of 6 months, the employee shall be deemed to be confirmed notwithstanding there being no letter of confirmation. During the period of probation or extended probation the Employer shall have the right to terminate his/her services without notice or assigning reasons thereof.

9. Attendance at Work.-

Unless otherwise specifically instructed by the Employer an employee shall present himself for work on every day other than a holiday due to him, at the usual starting time and at the usual working place and shall thereafter remain available for work throughout the normal working hours.

10. Promotions.-

- i. Wherever vacancies exist, all other factors being comparable, seniority shall be given preference. The Employers shall advertise internally, vacancies where employees covered by this Agreement may have appropriate skills and qualifications to make them eligible.
- ii. Where an employee acts in a senior capacity over a period of 6 months and if he is confirmed in the senior capacity, he will not be required to serve a period of probation.
- iii. Where an employee is required to act in a senior capacity for a period of more than one month, it should be communicated to him in writing, and he shall be paid an Acting Allowance of Rupees Two Thousand Five Hundred (Rs.2,500/=) per mensem. When confirmed, this acting allowance shall be added to the salary.
- iv. When promoting an employee to a senior position, a salary increase of minimum one (1) increment shall be granted.
- v. If an employee obtains a work-related course certificate from National Institute of Plantation Management (other than the courses initiated by the Corporation), such employee shall be granted special increments with reimbursement of course fee and to be considered for a higher position.
- vi. Overlooking periods shall not exceed six months and during that period, the employer shall pay the employee 10% of the employees basic salaries as an overlooking allowance. This functional allowance shall not attract any consequential benefits such as EPF & ETF.

11. Salaries.-

1. The salaries payable to the employee covered and bound by this Agreement shall be revised as follows:
 - i. With effect from 01st October 2022, the salaries of all employees who are in employment shall be increased by 25% based on the salary drawn in September 2022.
 - ii. With effect from 01st October 2024, the salaries of covered employees who are in employment shall be increased by 5% based on the last drawn salary.
 - iii. Subject to the provisions set out in clause 6 (i) above, the Sri Lanka State Plantations Corporation covered and bound shall pay the revised salaries from the month of October 2022.
 - iv. Employees who reach the maximum salary point depicted in the scale will continue to receive annual increments

if they continue to remain within the same category.

- v. In the case of Stenographers/Clerical staff and Storekeepers / Clerical staff who are entitled to an allowance on account of work as a Stenographer or Storekeeper, as the case may be such employee shall continue to receive his/her allowances at the rate of 15% of the salary drawn by him/her. The allowances shall not be payable if the additional duties are not performed or not deemed necessary. Contributions to EPF and ETF shall be made in respect of this allowance.
 - vi. In terms of the above salary revision, the salary ranges applicable will accordingly be revised as per schedule 1 of this Agreement.
2. i. With effect from the date hereof, employees who are entitled to a payment in lieu of staff quarters being provided to them shall receive a 10% increment of the following allowances, which will be rounded off to the nearest fifty rupees, depending on the grade to which they belong, and the revised allowance will be as follows:

Junior Clerk	-	Rs. 1,350/= + 10% = Rs. 1,500/=
Clerk	-	Rs. 1,450/= + 10% = Rs. 1,600/=
Senior Clerk	-	Rs. 1,700/= + 10% = Rs. 1,900/=
Administrative Officer	-	Rs. 1,850/= + 10% = Rs.2,050/=
Special Grade Admin. Officer	-	Rs. 1,900/= + 10% = Rs.2,100/=

- ii. In the event of any person not occupying quarters provided by the Employer, such person shall be liable to disciplinary action.

12. **Annual Increments.**—

- i. Annual increments shall be granted automatically on completion of an year's service. The increments will be awarded in accordance with the practice prevailing on each estate, Where increments are awarded on a uniform date to all employees, in the event of an employee being confirmed in service within six months of the date on which increments are awarded, he shall not be entitled to any increment and will become eligible only from the following year.
- ii. An increment may be suspended, stopped or deferred by way of punishment or for general inefficiency, after the employee has been notified in writing of such fact. In the case of deferment, the loss of increment shall be continuous, whereas stoppage would be only for the period relevant to the stoppage.
- iii. The revised annual increments shall be paid to all employees in employment as on 01st October 2022.

Junior Clerk	Rs. 775/=
Clerk	Rs. 925/=
Storekeeper	Rs. 925/=
Senior Clerk	Rs. 1125/=
Administrative Officer	Rs. 1675/=
Special Grade Admin. Officer	Rs. 2125/=

13. **Hours of Work and Overtime.**—

If required by his Employer, an Employee shall work reasonable overtime which has been authorized by the Employer. Each hour of overtime work shall be calculated as per the provisions of the Shop and Office Employees' Act.

14. **Weekly and Poya Holidays.**—

An employee will be entitled to weekly holidays on Saturday half-day and Sunday full day as provided in the Shop and Office Employees Act. Payment for work on such days shall be remunerated at the prescribed statutory rates.

15. **Statutory Holidays.-**

- i. All employees covered by this Agreement will be entitled to statutory holidays as provided in the Shop and Office Employees' Act:

Tamil Thai Pongal Day
National Day
Day Prior to Sinhala and Tamil New Year
Sinhala and Tamil New Year Day
May Day
Day following Vesak Full Moon Poya Day
Holy Prophet's Birthday (Milad-Un-Nabi)
Christmas Day

- ii. Payment for work on such holidays shall be remunerated according to the provisions of the Shop and Office Employees' Act.

16. **Leave.-**

1. **Annual Leave** - 14 days shall be granted as prescribed in the Shop and Office Employees Act. All employees with more than 20 years' service and Heads of Departments shall be entitled to three weeks paid annual leave as a special benefit; this right shall not extend to any employee recruited after 01st September 1993.
2. **Casual Leave** - All employees shall be entitled in each year to a maximum of seven (7) days Casual Leave with full pay, not more than three (3) days being taken at a time. Casual leave not utilized in any one year will not be carried over to the next year.
3. (i) **Sick Leave** - Leave on full pay shall be granted up to a maximum of 21 working days in a year. Sick leave will be granted up to two days at a time without the submission of a Medical Certificate. For leave of three days and over, a medical certificate from an approved Medical Practitioner or Government Hospital shall be considered necessary, subject to the right of the Employer to call for a medical certificate as aforementioned, where he deems it appropriate.

(ii) In the event of an employee not availing himself of his full quota of sick leave, he may carry forward his leave, which he could use in the event of hospitalization or a prolonged illness in a succeeding year, subject to the condition however that he cannot avail himself of more than 90 days on that account.

(iii) In the case of an employee whose terms presently permit a higher quantum of sick leave he/she shall be permitted to continue to enjoy such concession as personal to him/her.
4. **Maternity Leave** - Maternity leave will be as per the provisions of the Shop and Office Employees Act. Accordingly, 84 working days of maternity leave will be granted on a live childbirth.

17. **Administrative Transfers.-**

- i. Transfers not involving hardship in relation to schooling of children or employment of a spouse, will, subject to the exigencies of the service and the requirements of the Employer, be made at the discretion of the Management with one month's notice in writing.
- ii. Transfers from one estate to another or from one division to another which are likely to cause hardship on account of children's schooling or the spouse's employment shall generally be made at the end of the year with three (3) calendar months' notice in writing on or before 30th September.
- iii. Employees whose children are sitting for the GCE OL/AL examination for the first time will not be transferred

in that particular year.

- iv. The transfers of employees whose children are to be admitted to Grade 1 in School also will be considered.
- v. No employee shall be transferred from one company to another managed by the same management company, without the consent of the employee.
- vi. Transfers from one plantation district to another, which are likely to cause hardship on account of children's schooling, or spouse's employment will be considered.
- vii. Employees whose children are sitting for year 5 scholarship exam will also be considered.
- viii. No employee covered by this Agreement shall be transferred, except on disciplinary grounds, in the last year prior to his retirement.
- ix. The provisions of sub-clauses (i), (ii), (iii), (iv), (v), (vi), and (vii) above shall not apply to transfers on disciplinary grounds, but the Management shall give reasonable notice, depending on the circumstances of each case.

18. **Age of Retirement.**—

Unless the Letter of Appointment specifies a higher retiral age, the age of retirement shall be 60 years and will be applicable to those who are in employment as at the date of signing this Agreement.

19. **Gratuity.**—

Gratuity shall be payable in accordance with the Payment of Gratuity Act, No. 12 of 1983.

20. **Disciplinary Inquiries.**—

- i. An employee may be suspended without pay by his Employer pending an inquiry on a charge which warrants dismissal or where, in the opinion of the Employer, a breach of the peace, damage to property or disturbance of business needs to be avoided. Where an employee is suspended without pay he shall be notified in a general manner of the reasons for such suspension within 3 days of the actual suspension.
- ii. An employee may also be suspended with pay pending a disciplinary investigation and inquiry, where the Management deems that such measure is necessary.
- iii. An employee is entitled to be furnished with a 'show cause' notice setting out the charges of misconduct alleged against him and the employee shall be granted not less than seven (7) clear working days in which to give the answer or explanation. Where necessary the employee may request further time and the Employer shall permit a reasonable amount of time depending on the nature of the charges, but not exceeding a total of 14 working days, other than in exceptional circumstances.
- iv. If the employer is satisfied with the written explanation, the employee shall be exonerated of the charge or charges and where appropriate he shall be summoned to report back for work. Where the explanation is unsatisfactory, the Employer shall hold a disciplinary inquiry within a reasonable length of time and shall commence such inquiry within 30 working days from the date on which the explanation to the 'show cause' letter is received, unless circumstances prevent the employer from doing so.
- v. An employee shall be permitted to have a Union member to defend him at the Inquiry. Such representative shall not be a professional. If the employee wishes to have the benefit of such representation he shall inform the Superintendent of the name of the person defending him at least 48 hours before the Inquiry is due to commence. The Superintendent may object to the individual selected, in which event the accused employee may

nominate another representative. The failure of an employee to be defended by a representative shall not vitiate the inquiry.

- vi. The Employer shall endeavor to give the findings and convey the punishment, if any, within a period of 30 working days from the date on which the inquiry is concluded, unless there is justification for the delay. In no case shall the findings be delayed beyond 90 working days from the date of conclusion of the inquiry, save and except in the case of a pending criminal investigation. If no findings are given within 90 working days and the above exception does not apply, the accused employee shall be exonerated of the charges.
- vii. Notwithstanding the above provisions, an Employer may, where the circumstances so warrant, terminate an employee summarily. In such event the letter of termination shall set out the reasons for termination, including the justification for summary termination. In such event, the Union may appeal to the Employer or to the appropriate forum.

21. *Suspension Pending Disciplinary Inquiries.*—

- i. An employee may be suspended from work without pay for a period not exceeding one month pending a disciplinary inquiry when there is *prima facie* evidence, in the opinion of the Employer, of a charge or charges of misconduct against him. Such suspension shall be in writing.
- ii. Suspension of an employee on the ground referred to in Sub-clause (i) above for any period in excess of one month shall be on half pay.
- iii. The provisions contained in Sub-clauses (i) and (ii) above shall not apply to the suspension of an employee pending inquiries by the Police, by other Public Authorities or Audit Verifications.

22. *Suspension as a Measure of Punishment.*—

- i. Punishment for offences in the case of an employee may include suspension, provided however that such suspension shall not exceed fourteen days without pay and shall be in writing.
- ii. Punishment in excess of three days suspension without pay shall only be after a domestic inquiry.

23. *Variations of Terms and Conditions of Employment & Disputes.*—

- i. Parties hereto agree that during the continuance in force of this Agreement, they will not seek to vary, alter or add to any of the terms and conditions of employment, except by mutual consent.
- ii. Any employee enjoying a benefit, which is over and above the normal entitlement, shall continue to enjoy the same as personal, but this benefit shall not extend to any other employee. The above provision shall not apply to the consumption of electricity, where a limit shall be fixed for all employees.
- iii. Any dispute or issue of interpretation of this Agreement shall be resolved by reference to the Commissioner General of Labour under the Industrial Disputes Act, and if no settlement could be reached, by voluntary arbitration thereafter.
- iv. It is agreed by and between parties that the Unions, collectively or independently, or their members, shall not resort to any form of trade union action on any matter covered by this Agreement or is connected therewith.

24. *Disputes Resolution Committee.*—

It is agreed by parties that a disputes resolution committee' shall meet once in three months to resolve any dispute that may arise in relation to any violation of the provisions of this Agreement, However, in case of an urgent necessity a

meeting will be held with two weeks' notice if requested by either party. Decisions arrived at the Disputes Resolution Committee shall be implemented within a period agreed between the parties.

25. **Duty Leave.-**

- (i) Subject to the approval of their respective Employers, the President and one other office bearer of the Parent Union will be permitted such duty leave as their Union duties require.
- (ii) Where any dispute arises with regard to duty leave of the President and the nominated office bearer of the Parent Union, as specified in sub clause (I) above, the both parties will attempt to effect an amicable settlement.
- (iii) By mutual arrangement with the Employer, the Treasurer of the Parent Union shall be allowed twelve days duty leave in any one year.
- (iv) By arrangement with their respective Employers, two Vice Presidents of the Union shall be allowed twelve days duty leave each in any one year.
- (v) By arrangement with their respective Employers, Branch Chairman and Executive Committee Member of the Union shall be allowed twelve days duty leave which may be shared with the respective Branch Secretaries, on condition that the total leave availed jointly by these two Office bearers shall not exceed twelve days in any one year.
- (vi) Duty leave shall be granted to one employee selected from amongst all staff categories per estate selected by the union to attend seminars and workshops conducted by the union or any other labour related institute on not more than two occasion in a year for a period not exceeding four (4) days. The Union shall inform the Employers in writing the requirement of duty leave required in terms of this clause.

PART II

01. The Sri Lanka State Plantations Corporation covered and bound by this agreement undertake to discuss with the Union to resolve any issues relevant to employees in a situation of amalgamation/sub-leasing of estates/divisions/factories prior to such situations. However, the Sri Lanka State Plantations Corporation will continue to be the employer of such employees.

02. **Electricity.-**

Free electricity would be granted to members of staff on the following basis, irrespective of what they had been enjoying in the past.

Elevation below 4,500 feet (Factory Elevation)

Senior staff	-	140	units
Junior staff	-	100	units

Elevation above 4,500 feet (Factory Elevation)

Senior staff	-	170	units
Junior staff	-	130	units

Recoveries for any excess usage will be made once in 6 months on the accumulated figure at the rate that costs each estate.

Kerosene - Employer shall provide 25 litres kerosene per mensem to those employees resident on estates / divisions without electricity.

03. **Tea Allowance.**—

The employer shall provide free tea, on the following basis, to members of estate staff (including future recruits in those categories presently entitled) irrespective of what they had been enjoying in the past.

Senior staff - 2 Kgs.
Junior staff - 1 1/2Kgs.

The staff members could purchase in addition to the above free tea, the same quantities at the rate of 75% of the NSA or COP whichever is lower.

Staff members who had been entitled to three or more kilos of tea at a concessionary rate before June 1992 would be entitled to purchase a maximum of 3kgs at an concessionary rate of 35% of COP or NSA whichever is lower with effect from 1st June 2003.

04. **Death Grant.**—

- i. With effect from the date hereof, on the death of a staff member, the dependents will be paid a sum of Rupees Two Hundred Thousand (Rs,200,000/=) as funeral expenses.
- ii. The dependents of the deceased staff member will be paid 50% of the sum equivalent to three months' salary within one month upon the death of the employee and the balance at the time the dependents hand over the staff quarters.
- iii. If quarters are not provided to the deceased staff member, the dependents will be paid the sum equivalent to three months salary within one month of the death of the staff member.

05. **Medical Aid Scheme.**—

- i. The Employee contribution to the medical aid scheme will be 5% and the Employers contribution shall be 10%.
- ii. A staff member who is a member of the staff medical aid scheme will be paid the total balance lying to his/her credit in the fund inclusive of the employer's contribution to such fund, at the time of retirement/death or termination of his/her employment from the estate.

06. **Union Subscription.**—

- i. The Employer agrees, on the written request of an employee, to deduct from the wages due to such employee, the current monthly union subscription as specified by employee, to be payable monthly by the employee to the union and remit the amount so deducted to the union by the following month, till such time the employee maintains his request.
- ii. In the event of the union being representative of less than 40% of the employees, no remittance in respect of check-off would be made thereafter.

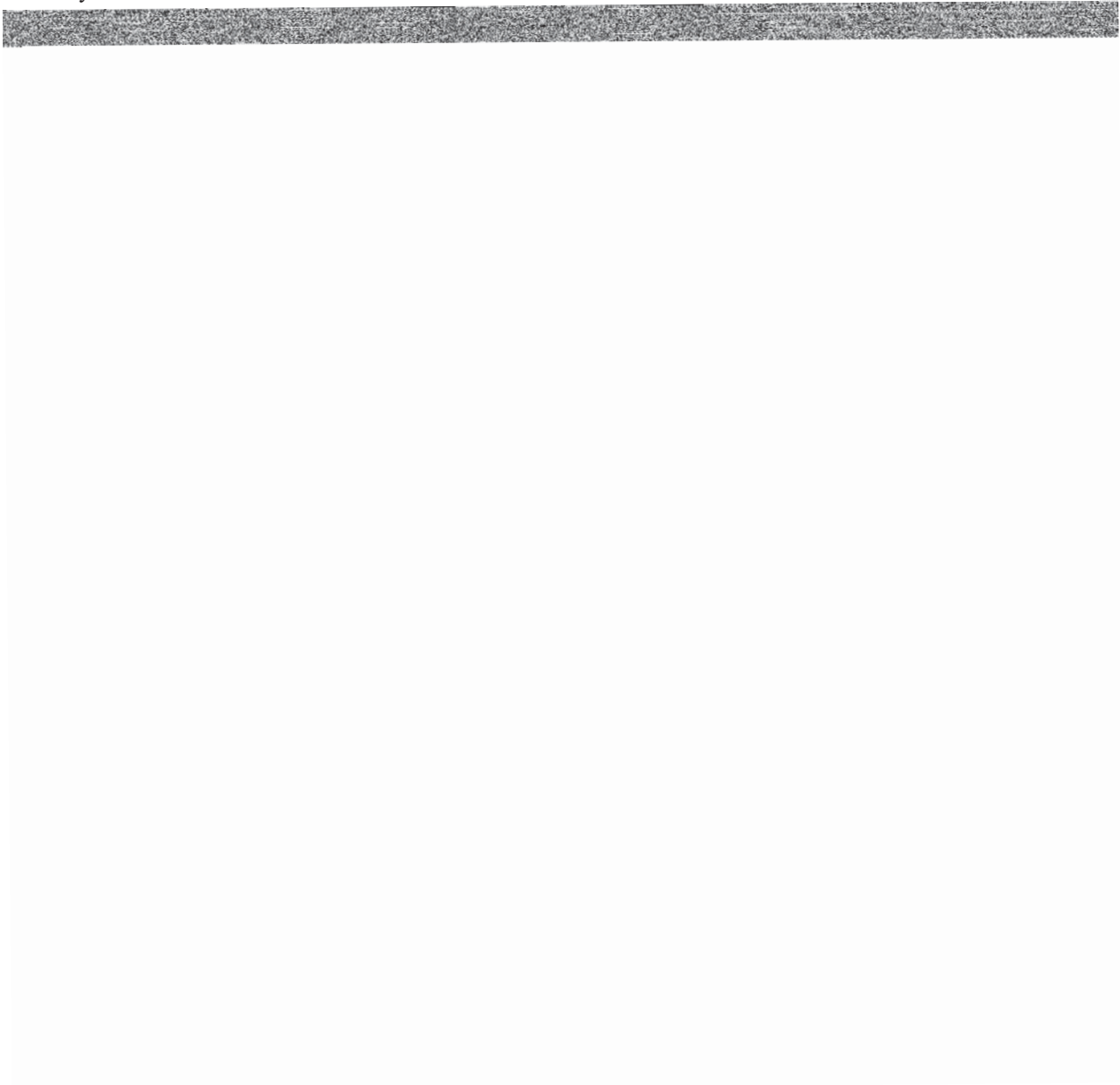
07. **Festival Advance.**—

- i. The festival advance presently stands Rs. 20000/00. Any revision will be on mutual agreements through negotiations.

INTERPRETATION

<u>Word</u>	<u>Meaning</u>
Union	means the union referred to as the Party of the Second Part in this Agreement.
Dispute	shall have the same meaning as in the Industrial Disputes Act.
Employer/Corporation	mean Sri Lanka State Plantations Corporation
Week	means the period between midnight on any Saturday and midnight on the succeeding Sunday night.
Year	means a continuous period of 12 months.
Gender	a reference to the masculine gender shall include the feminine as well.

In Witness whereof the parties aforesaid have hereunto set their hands at Colombo on this 10th day of February, Two Thousand and Twenty-Three.



Schedule I

Categories of Employees

	Previous Salary	Salary with 25% Increase	Proposed Initial Salary	Annual Increment 2023/2024/2025
Junior Clerk	Rs. 30125.00	Rs. 37656.00	Rs.38000.00	Rs. 775
Clerk	Rs.31000.00	Rs. 38750.00	Rs.39000.00	Rs. 925
Stores Keeper	Rs.31000.00	Rs. 38750.00	Rs.39000.00	Rs.925
Senior Clerk	Rs.32000.00	Rs. 40000.00	Rs.40000.00	Rs.1125
Admin Officer	Rs.33000.00	Rs. 41250.00	Rs.42000.00	Rs.1675
Admin Officer - Special Grade	Rs.39000.00	Rs. 48750.00	Rs.49000.00	Rs.2125

Note: From 01st October 2024 a 5% increase based on September, 2024 salary will be granted.

EOG 07-0288